

Legal and Ethical Concerns of Deepfake Technology

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The development of generative artificial intelligence has given rise to questions surrounding copyright law. Prior to artificial intelligence, copyright law did not have to question whether the author of some work was human or not. Even digital art that used computers as a medium still had a human hand behind it. Now copyright law must consider the author of the work as well as the muse of the work. RAD company is being asked to create deepfakes and fake news articles in return for large paychecks. These deepfakes rely on the existence of someone that exists and is well known. The RAD company must consider what copyright laws exist, how this could be considered infringement, the legal and ethical implications of publishing intentionally false information, and how this could be viewed internationally.

In the United States there are three main copyright laws and a few regulations that the U.S. Copyright Office considers. The three laws are: the Copyright Act of 1976, the Semiconductor Chip Protection Act of 1984, and the Vessel Hull Design Protection Act (U.S. Copyright Office, 2025). In addition to these laws, the Code of Federal Regulations – Title 37 is also included. These laws exist to protect the works created by humans. These works can be poems, speeches, ship deck designs, semiconductor designs, songs, and any creative work. The U.S. Copyright Office defines a copyright as, “Any type of intellectual property that protects original works of authorship as soon as an author fixes the work in a tangible form of expression” (2025). The office is explicit in stating that once someone creates a piece of creative work, they become both the author and owner (U.S. Copyright Office, 2025). These laws were made to protect the creativity of each individual so that they may protect their own work and profit from them. Another important law, especially in the technological age, is the Digital

Millennium Copyright Act (DMCA). This law was passed in 1998 to deal with many of the copyright challenges the Internet brought (U.S. Copyright Office, 2025). The copyright laws adapted and modernized to meet the challenges of inevitable technological advancement. Key parts of the DMCA, like Section 512 and 1202, led to systems and procedures to protect creative works of individuals that rely on the Internet. It may be time that another set of standards be created to protect the simple likeness of each person from deepfake technology. It is because of these laws and regulations that copyright infringement is a legal term.

Copyright infringement is when another individual attempts or succeeds in stealing someone's work and in some way trying to profit from it. The U.S. Copyright Office states that any form of reproduction, distribution, derivation, or display of an already copyrighted work without the express permission of the owner is considered copyright infringement (2025). Since it has already been determined that once someone creates some form of work and fixes it that they are the owner of that work, copyright infringement is stealing anyone's creative work. Though it may seem odd and unusual to think of stealing someone's likeness as copyright infringement, in some legal contexts it is.

RAD company is being asked to produce deepfakes and false news articles. When intentionally false information is published, defamation may be brought into question. First, defamation must be clearly defined. The New York courts define defamation as, "...an umbrella term for knowingly publicizing things about another person that aren't true and damage that person's reputation" (New York Courts, 2025). There are two key forms of defamation. The first is slander. Slander specifically refers to the spreading of false information about someone verbally. Meanwhile, when false information is spread via written form, that is called libel (New York Courts, 2025). Should RAD company publish false information in the form of fake news

articles that damage a person's reputation, they could be held accountable for defamation and libel. This appears to be what worries many of the employees at RAD company. They do want to potentially face defamation charges or lawsuits if their name is attached to the articles being published, even if the intent behind them is to parody a situation.

Additionally, there are many states that are passing laws in various forms against impersonation. These laws were specifically prompted by the rise of generative artificial intelligence. Tennessee, for example, replaced the Personal Rights Protection Act of 1984 with the Ensuring Likeness, Voice, and Image Security Act of 2024 (Tennessee General Assembly, 2024). The key summary of this law is that each individual has a property right over their likeness. This includes their name, photograph, and any other manner in which their likeness can be expressed. This specifically would affect the RAD company and their potential use of deepfake technology to parody others. According to this act, they may be held accountable for impersonating someone else in the state of Tennessee. The issue surrounding deepfake technology and potential harm to those impersonated by it even reach the U.S. Congress. In September of 2023, a bill titled *DEEPFAKES Accountability Act* was introduced in the House but has not made any further progress. Though detailing every part of the bill is not feasible, there are some key parts to note. First, the bill would make it so that any generative artificial intelligence content would need to clearly state that it is such. Additionally, creating deepfakes that display or depict an individual in a sexual manner, incite violence, or interfere in elections would have criminal penalties (Clarke, 2023). The general aim of this bill is to protect the privacy and rights to one's likeness. It is crucial that the line is drawn now for protecting user data and privacy rights. The more that is tolerated now, such as RAD company spreading

deliberate false information, will only lead to further privacy issues as technology gets more efficient and realistic.

There are many moral and ethical considerations the RAD company must make in deciding whether to engage in the business of producing and distributing deepfakes and false news articles. Many of the employees feel it is wrong and have voiced their opinions. Though they could leave, they should not be forced to potentially lose employment because their employer decides to engage in shady business practices. Many of the state laws being passed, as mentioned earlier, aim to specifically prevent the use of deepfake technology in producing pornographic material. This issue has also gone to the federal level with *S. 3696 DEFIANCE Act of 2024*. Though this bill passed the Senate in 2024 and does aim to have legal action available to victims of their likeness being used to create explicit materials, it seems to only enable civil action (Durbin, 2024). For these laws to be taken seriously and to be effective, the penalties must be more severe and considered criminal. Though Tennessee does consider it criminal, the Senate should look to change the bill from civil action to criminal penalties.

Another issue the RAD company may run into is that they cannot control where the data goes once it is on the Internet. Since it is currently a state-to-state issue, some states may be fine with deepfakes and false news while others may be able to bring charges against the company. Additionally, if any EU citizens were to be affected by this, RAD would be required to be compliant with the GDPR. There are many issues that the company leadership must consider. These issues are moral, ethical, and legal in nature. Also, it affects every employee of the company. Should a large enough number of employees deem it unethical and decide to leave, RAD would either need to quickly hire and train new employees or change courses. It is not a

simple decision for the company leadership even if a large check is being waved in front of them. They must consider the reputational harm of the company itself, and the people tied to it.

In conclusion, the RAD company has a difficult decision ahead of them with many issues to consider. They must take into account the rapidly evolving legal landscape in the United States surrounding deepfake technology and generative artificial intelligence. As states move to pass laws more quickly than the federal government, it becomes increasingly more difficult to navigate what is and what is not allowed per state. Additionally, employees should have their voices heard on whether they want the company to pursue such a polarizing business model. The RAD Company should fully consider how this decision reflects their ethics and values before accepting any money.

Sources

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